RESOLUTION MSC.520(106)
(adopted on 10 November 2022)

AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974 (CHAPTER II-2)

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

RECALLING ALSO article VIII(b) of the International Convention for the Safety of Life at Sea, 1974 ("the Convention"), concerning the amendment procedure applicable to the annex to the Convention, other than to the provisions of chapter I,

HAVING CONSIDERED, at its 106th session, amendments to the Convention proposed and circulated in accordance with article VIII(b)(i) of the Convention,

1 ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the Convention, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the said amendments shall be deemed to have been accepted on 1 July 2025, unless, prior to that date, more than one-third of the Contracting Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have notified the Secretary-General of their objections to the amendments;

3 INVITES Contracting Governments to the Convention to note that, in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 January 2026, upon their acceptance in accordance with paragraph 2 above;

4 REQUESTS the Secretary-General, for the purposes of article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Contracting Governments to the Convention;

5 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its annex to Members of the Organization which are not Contracting Governments to the Convention.

ANNEX

AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974

CHAPTER II-2
CONSTRUCTION – FIRE PROTECTION, FIRE DETECTION AND FIRE EXTINCTION

Part A
General

Regulation 1 – *Application*

1 Paragraph 2.5 is replaced by the following:

"2.5 Ships constructed before 1 July 2012 shall also comply with regulation 10.10.1.2, as adopted by resolution MSC.338(91) and regulations 4.2.1.6 to 4.2.1.8, as amended by resolution MSC.520(106)."

Regulation 3 – *Definitions*

2 The following new paragraphs are added after existing paragraph 58:

"59 *Confirmed case (flashpoint)* is when a representative sample analysed in accordance with standards acceptable to the Organization by an accredited laboratory reports the flashpoint as measured to be below 60°C.

60 *Representative sample* is a product specimen having its physical and chemical characteristics identical to the average characteristics of the total volume being sampled.

61 *Oil fuel* is defined in regulation 1 of Annex 1 of the International Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto."

Part B
Prevention of fire and explosion

Regulation 4 – *Probability of ignition*

3 At the end of paragraph 2.1.4, the word "and" is deleted and at the end of paragraph 2.1.5, "." is replaced by ";".

4 The following new sub-paragraphs are added after existing paragraph 2.1.5:

".6 ships carrying oil fuel shall prior to bunkering be provided with a declaration signed and certified by the oil fuel supplier's representative, that the oil fuel to be supplied is in conformity with paragraph 2.1 of this regulation, and the test method used for determining the flashpoint. A bunker delivery note for the oil fuel delivered to the ship shall contain either the flashpoint specified in accordance with standards acceptable to the Organization, or a statement that the flashpoint has been measured at or above 70ºC;

.7 Contracting Governments undertake to ensure that appropriate authorities designated by them inform the Organization, for transmission to Contracting Governments and Member States thereof, of all confirmed cases (flashpoint) where oil fuel suppliers have failed to meet the requirements specified in paragraph 2.1 of this regulation; and

.8 Contracting Governments undertake to ensure that appropriate authorities designated by them take action, as appropriate, against oil fuel suppliers that have been found to deliver oil fuel that does not comply with paragraph 2.1 of this regulation."